

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
MELIKE MCCRIMMON,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE VINCENT
MAURO, Tax No. 958892, LIEUTENANT STEVEN
DEGREE, Tax No. 943141, and DETECTIVE ANTHONY
PERLMUTTER, Tax No. 962683,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 27, 2023

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street,
New York, New York 10007
DETECTIVE VINCENT MAURO, Tax No. 958892, 44th Precinct Detective Squad
LIEUTENANT STEVEN DEGREE, Tax No. 943141, Narcotics Borough Bronx
DETECTIVE ANTHONY PERLMUTTER, Tax No. 962683, 44th Precinct Detective
Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
MELIKE MCCRIMMON,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, DETECTIVE VINCENT
MAURO, Tax No. 958892, LIEUTENANT STEVEN
DEGREE, Tax No. 943141, and DETECTIVE ANTHONY
PERLMUTTER, Tax No. 962683,**JURY TRIAL DEMANDED**Defendants.
----- X

Plaintiff MELIKE MCCRIMMON, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on May 27, 2020, at approximately 6:30 pm, he was lawfully present with his ex-wife in her vehicle which was parked in the vicinity of Findlay Avenue and East 169th Street, Bronx, New York, at which time the individually named defendant New York City Police Officers, unlawfully stopped, questioned, frisked, searched, falsely arrested, and falsely imprisoned plaintiff without probable cause or legal justification. At no time relevant herein did the officers recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control. The defendant officers allege that they recovered a firearm from underneath a vehicle that was parked on the same street, several vehicles away from the vehicle plaintiff was seated in when the officers arrested him. The defendant police officers did not allege that they ever saw plaintiff possess the firearm they allegedly recovered from underneath the vehicle, and the officers possessed no evidence that connected plaintiff to the firearm they allegedly recovered from underneath the vehicle. The officers unlawfully handcuffed plaintiff, falsely arrested him and transported him to the 44th Precinct, against his will, whereat he was unlawfully searched, interrogated, fingerprinted, photographed, and detained in a holding cell for many hours. Plaintiff was transported to Bronx Lebanon Hospital to receive treatment for a severe asthma attack he suffered, as a direct and proximate cause of the increased emotional stress and trauma he experienced from being falsely arrested. After plaintiff received treatment at the hospital, he was transported back to the 44th Precinct whereat the unlawful detention continued. Eventually

plaintiff was transported to Bronx Central Booking whereat he was unlawfully detained in several large holding cells with numerous other prisoners. The officers provided the Bronx District Attorney's Office and the United States Attorney's Office for the Southern District of New York with false, misleading, and incomplete evidence and information regarding the facts and evidence in their possession that purportedly established a legal basis for the officers to arrest plaintiff and charge him with crimes. Based upon the false, incomplete, and misleading information provided by the officers, plaintiff was maliciously prosecuted and denied the right to due process/right to a fair trial without probable cause. Plaintiff was arraigned in Bronx Criminal Court on May 29, 2020, and charged with crimes that plaintiff did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of a Weapon. At arraignment the court set bail, based upon the false allegations alleged by the officers against plaintiff. Plaintiff was unable to post bail at arraignment and he was remanded into New York City Department of Corrections custody where he was unlawfully detained until June 8, 2020, at which time he posted bail and was released from custody. However, on June 12, 2020, plaintiff was rearrested and falsely arrested again based upon the same false, misleading, and incomplete allegations made by the defendant officers, without probable cause, while he was lawfully present at his home located at 151 Terhume Ave, New Jersey. Plaintiff was maliciously prosecuted again based upon the false, misleading, and incomplete allegations made against him by the defendant officers, and he was arraigned in the Southern District of New York on June 12, 2020, and charged with crimes he did not commit based upon the officers' false allegations, including Criminal Possession of a Firearm. At arraignment in the Southern District of New York, the Court remanded plaintiff to the Metropolitan Correctional Center where he was unlawfully detained until December 18, 2020, at which time he was released from the Correctional Center and required to wear an ankle bracelet which confined plaintiff to his home. Plaintiff remained unlawfully confined in his home until the conclusion of the criminal prosecution in the Southern District of New York on April 8, 2021. All criminal charges brought against plaintiff in Bronx Criminal Court were dismissed and sealed in their entirety on November 24, 2020, after the court granted the District Attorney's Office's motion to dismiss and seal the charges in their entirety. All criminal charges brought against plaintiff in the Southern District of New York were dismissed on April 8, 2021, when a jury acquitted him of all charges after a 3-day trial. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied claimant the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff MELIKE MCCRIMMON is a resident of the state of New Jersey.
3. Defendant DETECTIVE VINCENT MAURO, Tax No. 958892, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE VINCENT MAURO, Tax No. 958892, was at all times relevant herein, assigned to the to the 44th Precinct and is presently assigned to the 44th Precinct Detective Squad.

5. Defendant DETECTIVE VINCENT MAURO, Tax No. 958892, is being sued in his individual and official capacity.

6. Defendant LIEUTENANT STEVEN DEGREE, Tax No. 943141, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant LIEUTENANT STEVEN DEGREE, Tax No. 943141, was at all times relevant herein, assigned to the 44th Precinct, and he is presently assigned to the Narcotics Borough Bronx command.

8. Defendant LIEUTENANT STEVEN DEGREE, Tax No. 943141, is being sued in his individual and official capacity.

9. Defendant DETECTIVE ANTHONY PERLMUTTER, Tax No. 962683, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE ANTHONY PERLMUTTER, Tax No. 962683, is and was at all times relevant herein, assigned to the 44th Precinct, and is presently assigned to the 44th Precinct Detective Squad.

11. Defendant DETECTIVE ANTHONY PERLMUTTER, Tax No. 962683, is being sued in his individual and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. By way of background, on May 27, 2020, at approximately 6:15 pm plaintiff met his ex-wife in the vicinity of where he lived to give her money to help support their children.

17. Plaintiff sat in his ex-wife's vehicle with his ex-wife, where they chatted, and he intended to give her the money for their children.

18. On May 27, 2020, at approximately 6:30 pm, plaintiff was lawfully present with his ex-wife, seated in her vehicle which was parked in the vicinity of Findlay Avenue and East 169th Street, Bronx, New York, at which time the individually named defendant New York City Police Officers, unlawfully stopped, questioned, frisked, searched, falsely arrested, and falsely imprisoned plaintiff without probable cause or legal justification.

19. The defendants forcefully pulled plaintiff from the car, threw him onto the ground, unlawfully handcuffed him, and falsely arrested him without probable cause or legal justification.

20. At no time relevant herein did the officers recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control.

21. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the officers possess objective facts that established probable cause for them to believe he violated the law or committed a crime.

22. The defendant officers allege that they recovered a firearm from underneath a vehicle that was parked on the same street, several vehicles away from the vehicle plaintiff was seated in when the officers arrested him.

23. The defendant police officers do not allege that they ever saw plaintiff possess the firearm they allegedly recovered from underneath the vehicle, and the officers possessed no evidence that connected plaintiff to the firearm they allegedly recovered from underneath the vehicle.

24. The officers unlawfully handcuffed plaintiff, falsely arrested him and transported him to the 44th Precinct, against his will, whereat he was unlawfully searched, interrogated, fingerprinted, photographed, and detained in a holding cell for many hours.

25. The defendants unlawfully seized two thousand eight hundred four dollars (\$2,804) which has not been returned to plaintiff and which he intended to give to his ex-wife for their children if the officers had not falsely arrested him before he gave the money to his ex-wife.

26. Plaintiff was transported to Bronx Lebanon Hospital to receive treatment for a severe asthma attack he suffered, as a direct and proximate cause of the increased emotional stress and trauma he experienced from being falsely arrested.

27. After plaintiff received treatment at the hospital, he was transported back to the 44th Precinct whereat the unlawful detention continued.

28. Eventually plaintiff was transported to Bronx Central Booking whereat he was unlawfully detained in several large holding cells with numerous other prisoners.

29. The officers provided the Bronx District Attorney's Office and the United States Attorney's Office for the Southern District of New York with false, misleading, and incomplete evidence and information regarding the facts and evidence in their possession that purportedly established a legal basis for the officers to arrest plaintiff and charge him with crimes.

30. Based upon the false, incomplete, and misleading information provided by the officers, plaintiff was maliciously prosecuted and denied the right to due process/right to a fair trial without probable cause.

31. Plaintiff was arraigned in Bronx Criminal Court on May 29, 2020, and charged with crimes that plaintiff did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of a Weapon.

32. At arraignment the court set bail at \$50,000, based upon the false allegations alleged by the officers against plaintiff.

33. Plaintiff was unable to post bail at arraignment and he was remanded into New York City Department of Corrections custody where he was unlawfully detained until June 8, 2020.

34. Plaintiff paid a bail bondsman \$5,000 to post bail and on June 8, 2020, he was released from custody after bail was posted.

35. However, on June 12, 2020, plaintiff was lawfully present at his home located at 151 Terhume Ave, New Jersey at which time he was rearrested and falsely arrested again based upon the same false, misleading, and incomplete allegations made by the defendant officers, without probable cause.

36. Plaintiff was maliciously prosecuted again based upon the false, misleading, and incomplete allegations made against him by the defendant officers, and he was arraigned in the Southern District of New York on June 12, 2020, and charged with crimes he did not commit based upon the officers' false allegations, including Criminal Possession of a Firearm.

37. At arraignment in the Southern District of New York, the Court remanded plaintiff to the Metropolitan Correctional Center where he was unlawfully detained until December 18, 2020, at which time he was released from the Correctional Center and required to wear an ankle bracelet which confined plaintiff to his home.

38. Plaintiff remained unlawfully confined in his home until the conclusion of the criminal prosecution in the Southern District of New York on April 8, 2021.

39. All criminal charges brought against plaintiff in Bronx Criminal Court were dismissed and sealed in their entirety on November 24, 2020, after the court granted the District Attorney's Office's motion to dismiss and seal the charges in their entirety.

40. All criminal charges brought against plaintiff in the Southern District of New York were dismissed on April 8, 2021, when a jury acquitted him of all charges after a 3-day trial.

41. At no time relevant herein did plaintiff commit a crime, nor did the officers have probable cause to accuse him of committing a crime.

42. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to establish probable cause to believe he committed a crime.

43. The criminal proceedings terminated in plaintiff's favor.

44. Defendants' unlawful and unconstitutional conduct caused plaintiff to endure being arrested and criminally prosecuted twice, for crimes he did not commit.

45. Moreover, plaintiff suffered extreme emotional distress from having to address the false charges brought against him in two criminal prosecutions.

46. The defendant officers' false, misleading, and incomplete allegations against plaintiff formed the basis for a criminal prosecution being initiated against him, without probable cause.

47. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

48. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging

in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

49. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

50. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, malicious prosecution, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

51. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

52. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

53. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

54. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment beginning 5/27/2020

56. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment beginning 6/12/2020

61. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question and Frisk

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop, question, and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Search

72. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

74. Defendants lacked probable cause to search plaintiff.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution In Bronx Criminal Court

78. Plaintiff repeats and realleges paragraphs 1 through 77 as if fully set forth herein.

79. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

80. Defendants commenced and continued a criminal proceeding against plaintiff.

81. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

82. The prosecution and criminal proceedings in Bronx Criminal Court terminated in plaintiff's favor on November 24, 2020.

83. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Malicious Prosecution In the Southern District of New York

85. Plaintiff repeats and realleges paragraphs 1 through 84 as if fully set forth herein.

86. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

87. Defendants commenced and continued criminal proceedings against plaintiff.

88. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

89. The prosecution and criminal proceedings in Bronx Criminal Court terminated in plaintiff's favor on April 8, 2021.

90. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 91 with the same force and effect as if fully set forth herein.

93. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office and the United States Attorney's Office for the Southern District of New York.

94. Defendants filled out false and misleading police reports and a criminal court complaint and forwarded them to the Bronx County District Attorney's Office and the United States Attorney's Office for the Southern District of New York.

95. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

96. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Failure to Intervene

98. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

100. Defendants failed to intervene to prevent the unlawful conduct described herein.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested, maliciously prosecuted, and denied the right to due process, without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

105. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

106. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

107. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

108. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

109. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

110. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

111. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

112. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of,

and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

113. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

114. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

115. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff MELIKE MCCRIMMON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 27, 2023

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
May 27, 2023

David Hazan

DAVID M. HAZAN